

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, AUGUST 4, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**COLEMAN v. KONDYLLIS, ET AL.
Case No. CU24-01921**

Motion to Enforce Settlement

TENTATIVE RULING

The motion to enter judgment pursuant to the terms of the settlement agreement is GRANTED.

Defendant concedes that the parties entered into a valid and enforceable settlement agreement. There is no dispute between the parties regarding the terms of the settlement agreement. Instead, the parties disagree about whether Defendants' "actions constituted a material breach of the agreement", which is not relevant to the determination of the motion. (*Machado v. Myers* (2019) 39 Cal.App.5th 779, 795-796.) Accordingly, the court will enter judgment "setting forth all the material terms of the parties' settlement agreement." (*Id.* at 801.)

Judgment will be entered on the exact terms of the settlement agreement.

The court notes that the terms of the settlement agreement do not include painting or repairing the house after the awning was removed. Likewise, the settlement agreement does not provide the driveway will be restored to pre-2021 City of Vallejo

guidelines and that the driveway must comply with Vallejo code. The material terms of the settlement agreement are straightforward.

Post-judgment motions to enforce the terms of a judgment are different than a motion to enter judgment.

Under these facts, entry of judgment pursuant to 664.6 is warranted. The purpose of Code of Civil Procedure section 664.6 is to provide a summary procedure to enforce a settlement agreement by entering judgment pursuant to the specific terms of the settlement.

Neither party is deemed a prevailing party at this time.

Department 3's matters will be heard by Department 8 on August 4, 2026. Any requests for oral argument should continue to be directed to Department 3.

DO TKNN LLC v. NAZILA EDALATI
Case No. CU24-06943

Motion to Compel

TENTATIVE RULING

Continued on the court's own motion to Tuesday, August 11, 2026, at 9:00 a.m. in Dept. 3 at which time parties are to appear and Defendant may present argument as to why the court should not issue terminating sanctions.

VICTORIA HINES v. WINDSOR VALLEJO CARE CENTER, LLC et al.
Case No. CU25-00077

Defendants' Motion to Stay

TENTATIVE RULING

Defendants WINDSOR VALLEJO CARE CENTER, LLC and WINDSOR NORCAL 13 HOLDINGS, LLC move to stay Plaintiff VICTORIA HINES's action pursuant to Code of Civil Procedure section 1281.4 pending the outcome of Defendant's motion to compel arbitration, presently set for October 16, 2026.

Code of Civil Procedure section 1281.4 applies here to mandate a stay of proceedings pending the determination of Defendants' motion to compel arbitration. (*Twentieth Century Fox Film Corp. v. Superior Court* (2000) 79 Cal.App.4th 188, 192.) Defendants' motion is granted. This action is ordered stayed pending resolution of Defendants' motion to compel arbitration.

Discovery limited to the motion to compel arbitration may proceed. In addition, the parties stipulate to taking the deposition of VICTORIA HINES to preserve her testimony for either trial or arbitration given her age and health. This limited discovery shall not serve as a waiver of arbitration by stipulation of the parties.

Department 3's matters will be heard by Department 8 on August 4, 2026. Any requests for oral argument should continue to be directed to Department 3.

MARTINEZ v. EDGE CMTY. CHURCH, ET AL.
Case No. CU25-10889

Demurrer

TENTATIVE RULING

Defendant Edge Community Church's unopposed demurrer to Plaintiff's complaint is sustained without leave to amend.

The court takes judicial notice of the statements of information from the California Secretary of State. (*Friends of Shingle Springs Interchange, Inc. v. County of El Dorado* (2011) 200 Cal.App.4th 1470, 1483-1484; see, e.g., *Elmore v. Oak Valley Hosp. Dist.* (1988) 204 Cal.App.3d 716, 722 [a statement filed with the Secretary of State and properly indexed is a document of which a court can properly take judicial notice].)

Contrary to Plaintiff's allegation that Defendant Edge Community Church "operates a shelter at 1260-1266 Sacramento St., Vallejo, CA. called the Solano Dream Center, which is. [sic] and at all times herein, was operated by Edge Community Church" (Complaint, ¶ 7), the judicially noticed statements of information from the Secretary of State establish that Defendant Edge Community Church and Solano Dream Center are distinct legal entities. Defendant Edge Community Church is a California Nonprofit Corporation with its principal office at 2300 Boynton Avenue in Fairfield. (RJN, Exh. A.) Solano Dream Center is a separate California Nonprofit Religious Corporation with its principal office at 2166 Sacramento Street in Vallejo. (RJN, Exh. B.) All of Plaintiff's causes of action are based on accepting Robert Quiros as a resident of Solano Dream Center despite his history of violent crime. (Complaint, ¶¶ 15, 25, 36.) Plaintiff has not alleged any other facts that would permit imposition of liability on Defendant Edge Community Church for the conduct of Nonparty Solano Dream Center.

Plaintiff has made no attempt to meet his burden of showing "in what manner he can amend the complaint and how that amendment will change the legal effect of his pleading." (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Cooper v. Equity Gen. Ins.* (1990) 219 Cal.App.3d 1252, 1263-1264; *McMartin v. Childrens' Inst. Int'l* (1989) 212 Cal.App.3d 1393, 1408.)

Department 3's matters will be heard by Department 8 on August 4, 2026. Any requests for oral argument should continue to be directed to Department 3.

Join ZoomGov Meeting

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